

Terms of Use

Conditions for accessing and using Birthly

Versão: v3.0 | Vigência: 01/11/2026

Conditions for accessing and using Birthly

This document describes the current Birthly product. The language follows the app preference. Birthly - app for organizing birthdays, reminders and shareable cards.

1. Acceptance and scope

These Terms govern access to Birthly, its screens, features, integrations and subscriptions. By creating an account, accessing or using the app, you state that you have read and agree to these Terms. If you do not agree, do not use the service.

- The applicable version is the one shown when used and recorded at acceptance when requested.
- The Privacy Policy is part of these Terms.
- The controller legal identity and official support channel must remain current in the app and official store listing.

2. What the service provides

Birthly organizes birthdays, dates, reminders and personalized cards. Depending on device, environment and permissions, it may include account sync, contact import, email or social sign-in, notifications, widget, messages, profile photo, card background photo and handwritten signature.

- The card background photo is temporary in the current flow and is automatically discarded when leaving the flow or after sharing. Nothing remains stored in the app and there is no automatic server upload.
- The final PNG is sent to the sharing app only when you tap Share and confirm a destination.
- Features may vary by platform, connectivity, permissions and third-party services.

3. Account, security and eligibility

Some features require an account. You must provide accurate information, protect credentials and report unauthorized access. Sign-in may use email and password or Apple/Google when available. On the first social sign-up, the user must accept the Terms of Use and Privacy Policy.

- Do not share passwords, codes or sessions.
- Device biometrics, PIN or password provide an additional local layer, not an absolute guarantee.
- Birthly is not intentionally directed to children; minors should use it with guardian guidance and authorization where applicable.
- We may limit, suspend or terminate an account for fraud, abuse, breach, security risk or legal duty, respecting mandatory rights.

4. Content and third-party data

You retain rights in names, dates, notes, messages, images, drawings and signatures you add. You grant Birthly a limited, non-exclusive license to store, process and display that content only to perform features you choose.

- You state that you have permission or an appropriate legal basis to enter other people data, including names, birthdays, notes, contacts and images.

- Do not enter illegal, abusive, discriminatory, defamatory content or content that violates privacy, image, copyright or security rights.
- We do not claim ownership of personal content you add.

5. Plans, limits and purchases

The free version may have limits. In the current configuration, the free limit is up to 15 birthdays; more possibilities may be released in the future. Premium, when available, expands the features described in the in-app offer.

- Prices, taxes, trials, renewals and benefits are those shown at purchase and may vary by country, currency, platform and store.
- Apple App Store or Google Play processes charges; RevenueCat may technically manage products and entitlements.
- Cancellation, restoration and refunds follow the store that processed the charge.
- Premium access depends on purchase confirmation and external services.

6. Permissions and third parties

For specific features, the app may request contacts, camera, photos, notifications and local authentication permissions. Denying or revoking permission may prevent the corresponding feature.

- Supabase provides authentication, database and synchronization.
- Firebase provides analytics, Crashlytics and push messaging.
- Apple and Google provide social sign-in, platform services and purchases when used.
- The sharing app you select receives the file after confirmation and has its own rules.

7. Acceptable use

You may not access other accounts or data, bypass limits, exploit vulnerabilities, interfere with service, distribute malware, automate abusive requests or use Birthly unlawfully.

- We may preserve minimum records for security, fraud prevention and legal compliance.
- Nothing limits mandatory rights under the LGPD, Brazilian consumer law or other applicable law.

8. Availability and liability

The service is provided with reasonable availability. Authentication, cloud, notification, store, gallery, camera and sharing services depend on third parties and may be unavailable or change.

- Reminders are an aid and do not replace checking dates; delivery of every notification is not guaranteed.
- Keep copies of important information and review imported data.
- To the extent permitted by law, we are not responsible for third-party, device or improper-use failures.
- These limitations do not exclude liability that cannot legally be excluded or limited.

9. Intellectual property

The Birthly name, visual identity, code, interfaces, illustrations, text and components belong to the owner or licensors. These Terms grant a personal, limited, revocable and non-transferable license while use is authorized.

- Do not copy, sell, rent, redistribute or commercially exploit the app without authorization.
- Third-party rights remain with their owners.

10. Deletion and termination

You may start account deletion through Profile. Deletion removes or makes data inaccessible according to the implemented flow and retention duties. Backups, security, transaction evidence and legal records may remain as needed.

- Termination does not undo shares already made with third parties.
- Some data may be kept for legal compliance, fraud prevention, disputes, rights or enforcement of these Terms.

11. Future changes

We may update these Terms due to app, service, legal, security or business-model changes. Each version will have a number and effective date.

- Material changes will be highlighted and, when necessary, require renewed acceptance before continued use.
- Non-material changes may be published in the app.
- Version and acceptance history may be kept to show which version was presented.
- If you disagree, you may close the account, subject to legal duties.

12. Governing law and contact

These Terms are governed by Brazilian law. Any forum will respect consumer rights and rules applicable to contracts in Brazil.

- Use the support channel shown in Birthly and the official listing for questions, account requests or rights.
- The controller is Eduardo Shoiti Fujiwara, a natural person operating under the FujiSys brand, reachable at Rua Conselheiro Brotero, 717, São Paulo - SP, CEP 01232-011, and contato@fujisys.com.br.

Legal and transparency references This text considers applicable Brazilian law and public ANPD guidance. The references do not replace legal advice for the specific business or processing activities. Law No. 13,709/2018 - LGPD Law No. 12,965/2014 - Brazilian Internet Civil Rights Framework Law No. 8,078/1990 - Consumer Protection Code ANPD - Data Subject Rights ANPD - Information Security Guide for Small-Size Processing Agents
End of Terms of Use - version v3.0 - effective 01/11/2026.